

THIS AGREEMENT IS A LEGALLY BINDING CONTRACT. BY SIGNING BELOW, THE PARTIES ACKNOWLEDGE THAT THEY HAVE READ, UNDERSTOOD, AND AGREED TO ALL TERMS AND CONDITIONS, AND THAT THEY ENTER INTO THIS AGREEMENT VOLUNTARILY AND WITH FULL LEGAL CAPACITY.

Non-Disclosure Agreement

This Non-Disclosure Agreement is made and entered into on the [START DATE DD/M-M/YYYY] (“**Effective Date**”) BY and BETWEEN [DISCLOSING PARTY NAME] (hereinafter referred to as “**Disclosing Party**”), whose address is [ADDRESS OF DISCLOSING PARTY] and [RECEIVING PARTY NAME] (hereinafter referred to as “**Receiving Party**”), whose address is [ADDRESS OF RECEIVING PARTY].

The *Disclosing Party* and the *Receiving Party* may be referred to individually as a “*Party*” and collectively as the “*Parties*.”

1 Purpose

The Parties wish to disclose certain confidential information for the purpose of [describe purpose, e.g., evaluating a business relationship, collaboration, legal consultation] (the “Purpose”). This Agreement governs the disclosure and protection of that information.

2 Definition of Confidential Information

Confidential Information means any non-public information disclosed by the *Disclosing Party* to the *Receiving Party*, whether orally, in writing, electronically, or otherwise, including but not limited to:

- Business, financial, or strategic information
- Legal documents, templates, or analyses
- Personal data (where lawful)
- Trade secrets, know-how, processes, or methodologies
- Any information marked or identified as confidential, or that reasonably should be understood to be confidential given its nature

3 Exclusions from Confidential Information

Confidential Information does not include information that the *Receiving Party* can demonstrate:

- Is or becomes publicly available through no breach of this Agreement

- Was lawfully known to the *Receiving Party* prior to disclosure
- Is lawfully received from a third party without restriction
- Is independently developed without use of the *Confidential Information*
- Is approved for release in writing by the *Disclosing Party*

4 Obligations of the Receiving Party

The *Receiving Party* agrees to:

- Use the *Confidential Information* solely for the *Purpose*
- Not disclose the *Confidential Information* to any third party without prior written consent
- Protect the *Confidential Information* with at least the same degree of care used to protect its own confidential information, but no less than reasonable care
- Limit access to *Confidential Information* to those who need to know for the *Purpose* and are bound by confidentiality obligations

5 Permitted Disclosures

The *Receiving Party* may disclose *Confidential Information* if required by law, regulation, or court order, provided that (where legally permitted) the *Disclosing Party* is given prompt notice and an opportunity to seek protective measures.

6 Ownership

All *Confidential Information* remains the exclusive property of the *Disclosing Party*. No license or other rights are granted under this Agreement except as expressly stated.

7 Term and Survival

7.1 Term

This Agreement shall commence on the *Effective Date* and continue for [term, e.g., two (2) years].

7.2 Survival

The obligations of confidentiality shall survive termination of this Agreement for [survival period, e.g., three (3) years], or as long as the information remains confidential, whichever is longer.

7.3 Return or Destruction of Materials

Upon written request or termination of this Agreement, the *Receiving Party* shall promptly return or destroy all *Confidential Information* and certify such destruction if requested.

8 No Warranty

All *Confidential Information* is provided “as is.” The *Disclosing Party* makes no representations or warranties regarding its accuracy or completeness.

9 Remedies

The *Receiving Party* acknowledges that unauthorized disclosure may cause irreparable harm. The *Disclosing Party* shall be entitled to seek injunctive relief in addition to any other remedies available at law or equity.

(Signature page follows)

IN WITNESS WHEREOF, the *Disclosing Party* and *Receiving Party* have duly executed this Agreement on the date set forth below.

DISCLOSING PARTY

Name: [DISCLOSING PARTY NAME]

Address: [ADDRESS OF DISCLOSING PARTY]

Phone: [DISCLOSING PARTY PHONE]

Email: [EMAIL OF DISCLOSING PARTY]

RECEIVING PARTY

Name: [RECEIVING PARTY NAME]

Address: [ADDRESS OF RECEIVING PARTY]

Phone: [RECEIVING PARTY PHONE]

Email: [EMAIL OF RECEIVING PARTY]